State, or even a license to transact business. *District of Columbia* v. *Saville*, 1 McArthur, 581; *S. C.*, 29 Am. Rep. 616; *Sharpe* v. *Whiteside*, 19 Fed. Rep. 156; *Gibbs* v. *Tally*, 133 California, 373; *State* v. *Associated Press*, 60 S. W. Rep. 191; *Leep* v. *St. Louis*, 25 S. W. Rep. 575.

Mr. William G. Burke, for defendant in error, submitted:

The statute attacked in this case is applicable only to places of public amusement or entertainment and was within the power of the legislature to enact. *Munn* v. *Illinois*, 94 U. S. 113; *Grannan* v. *Westchester Racing Assn.*, 16 App. Div. 8; *S. C.*, 44 N. Y. Supp. 790; *Baylies* v. *Curry*, 128 Illinois, 287; *People* v. *King*, 110 N. Y. 418.

The constitutionality of the statute under consideration has been twice upheld by the Supreme Court of California. *Greenberg* v. *Western Turf Assn.*, 82 Pac. Rep. 684.

MR. JUSTICE HARLAN delivered the opinion of the court.

The plaintiff in error is a corporation of California, and the lessee, in possession, of a race-course kept as a place of public entertainment and amusement, and to which it was accustomed to issue tickets of admission. The defendant Greenberg purchased one of such tickets, and was admitted to the race-course. After being admitted he was ejected from the premises against his will by police officers, acting, it was alleged in the complaint, by the direction of the plaintiff. The defendant denied responsibility for the acts of those officers. It was sued by Greenberg in one of the courts of California, and there was a verdict and judgment against the Association for the sum of one thousand dollars. The case was taken to the Supreme Court of the State and the judgment was affirmed. 148 California, 126.

At the trial a question was raised as to the applicability to this case of a statute of California relating to the admission of persons holding tickets of admission to places of public